Know My Name

By Chanel Miller

(Pg 7) *(to audience)* In this story, I will use Brock Turner's name, but the truth is he could be Brad or Brody or Benson, and it doesn't matter. This is an attempt to transform the hurt inside myself, to confront a past, and find a way to live with and incorporate these memories. I want to leave them behind so I can move forward. My name is Chanel. I am a victim, I have no qualms with this word, only with the idea that it is ***all*** that I am. However, I am not ***Brock Turner's victim***. I am not his anything. I don't belong to him.

INTRODUCTION

One night in January 2015, two Stanford University graduate students biking across campus spotted a freshman thrusting his body on top of an unconscious, half-naked woman behind a dumpster. A California jury found 20-year-old Brock Allen Turner, guilty of three counts of sexual assault. Facing a maximum of 14 years in state prison, Turner was sentenced to only 6 months in county jail and probation. The judge said he feared a longer sentence would have a "severe impact" on Turner, a champion swimmer who once aspired to compete in the Olympics.

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At that time, Chanel Miller, the victim, was known to the world as Emily Doe. Her impact statement was viewed by 11 million people within 4 days; it was translated globally and read on the floor of Congress; it inspired changes in California law and the recall of the judge in the case. Thousands wrote to say that she had given them the courage to share their own experiences of assault for the first time. Now she reclaims her identity to tell her story of trauma, transcendence, and the power of words.

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(Pg 284-285) *(to audience)* On January 17th, 2015, it was a quiet Saturday night at home. My dad made some dinner and I sat at the table with my younger sister who was visiting for the weekend. I was working full time and it was approaching my bed time. I planned to stay at home by myself, watch some TV and read, while she went to a party with her friends. Then, I decided it was my only night with her, I had nothing better to do, so why not, there's a dumb party ten minutes from my house, I would go, dance like a fool, and embarrass my younger sister.

I made silly faces, let my guard down, and drank liquor too fast not factoring in that my tolerance had significantly lowered since college. The next thing I remember I was in a gurney in a hallway. I had dried blood

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and bandages on the backs of my hands and elbow. A deputy explained I had been assaulted. I was asked to sign papers that said “Rape Victim. ” On that morning, all that I was told was that I had been found behind a dumpster, potentially penetrated by a stranger, and that I should get retested for HIV because results don’t always show up immediately. But for now, I should go home and get back to my normal life.

(Pg 52) In rape cases it’s strange to me when people say, Well why didn’t you fight him? If you woke up to a robber in your home, saw him taking your stuff, people wouldn’t ask, Well why didn’t you fight him? Why didn’t you tell him no? He’s already violating an unspoken rule, why would he suddenly decide to adhere to reason? What would give you reason to think he’d stop if you told him to? And in this case, with my being unconscious, why were there still so many questions?

(Pg 287) One day, I was at work, scrolling through the news on my phone, and came across an article. In it, I read and learned for the first time about how I was found unconscious, with my hair disheveled, long necklace

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wrapped around my neck, bra pulled out of my dress, dress pulled off over my shoulders and pulled up above my waist, that I was butt naked all the way down to my boots, legs spread apart, and had been penetrated by a foreign object by someone I did not recognize. This was how I learned what happened to me, sitting at my desk reading the news at work. I learned what happened to me the same time everyone else in the world learned what happened to me -- This can’t be me, this can’t be me -- I kept reading. In the next paragraph, I read something that I will never forgive; I read that according to him, I liked it. I liked it.

And then, at the bottom of the article, after I learned about the graphic details of my own sexual assault, the article listed his swimming times. She was found breathing, unresponsive with her underwear six inches away from her bare stomach curled in fetal position. By the way, he’s really good at swimming. Throw in my mile time if that’s what we’re doing. I’m good at cooking, put that in there, I think the end is where you list your extracurriculars to cancel out all the sickening things that’ve happened.

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(Pg 288) I thought there's no way this is going to trial; there were witnesses, there was dirt in my body, he ran but was caught. He's going to settle, formally apologize, and we will both move on. Instead, I was told he hired a powerful attorney, expert witnesses, private investigators who were going to try and find details about my personal life to use against me, find loopholes in my story to invalidate me in order to show that this sexual assault was in fact a misunderstanding. **(Pg 289)** I had no power, I had no voice, I was defenseless. My memory loss would be used against me. His attorney constantly reminded the jury, the only one we can believe is Brock, because she doesn't remember. That helplessness was traumatizing.

(Pg 290) After a physical assault, I was assaulted with questions designed to attack me, to say see, her facts don't line up, she's out of her mind, she's practically an alcoholic, she probably wanted to hook up, he's like an athlete right, they were both drunk, whatever, the hospital stuff she remembers is after the fact, why take it into account, Brock has a lot at stake so he's having a really hard time right now.

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(Pg 80) When a woman is assaulted, one of the first questions people ask is, Did you say no? This question assumes that the answer was always yes, and that it is her job to revoke the agreement. To defuse the bomb she was given. But why are they allowed to touch us until we physically fight them off? Why is the door open until we have to slam it shut?

(Pg 291) *(to defendant)* [For] future reference, if you are confused about whether a girl can consent, see if she can speak an entire sentence. You couldn't even do that. Just one coherent string of words. If she can't do that, then no. Not maybe, just no. Where was the confusion? This is common sense, human decency.

(Pg 293-297) *(to audience)* In the end, his unsupported statements and his attorney's twisted logic fooled no one. The truth won, the truth spoke for itself. You are guilty. Twelve jurors convicted you guilty of three felony counts beyond reasonable doubt, that's twelve votes per count, thirty-six yeses confirming guilt, that's one hundred percent, unanimous guilt. This is not a story of another drunk college hookup with poor decision making. Assault

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is not an accident. *(to defendant)* Somehow, you still don't get it. Somehow, you still sound confused.

You said, "Being drunk I just couldn't make the best decisions and neither could she." Alcohol is not an excuse. Is it a factor? Yes. But alcohol was not the one who [raped me]. Having too much to drink was an amateur mistake that I admit to, but it is not criminal. Everyone in this room has had a night where they have regretted drinking too much. Regretting drinking is not the same as regretting sexual assault.

You said, you are in the process of establishing a program for high school and college students in which you speak about your experience to "speak out against the college campus drinking culture and the sexual promiscuity that goes along with that." Campus drinking culture. That's what we're speaking out against? You think that's what I've spent the past year fighting for? Not awareness about campus sexual assault, or rape, or learning to recognize consent. Campus drinking culture. Down with Jack Daniels. Down with Skyy Vodka. If you want to talk to people about drinking go to an AA

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meeting. You realize, having a drinking problem is different than drinking and then forcefully trying to have sex with someone? Show men how to respect women, not how to drink less. Drinking culture and the sexual promiscuity that goes along with that. Goes along with that, like a side effect, like fries on the side of your order. Where does promiscuity even come into play? I don't see headlines that read, *Brock Turner, Guilty of drinking too much and the sexual promiscuity that goes along with that.* Campus Sexual Assault. There's your first PowerPoint slide. Rest assured, if you fail to fix the topic of your talk, I will follow you to every school you go to and give a follow up presentation.

Lastly you said, "I want to show people that one night of drinking can ruin a life." A life, one life, yours, you forgot about mine. Let me rephrase for you, I want to show people that one night of drinking can ruin two lives. You and me. You are the cause, I am the effect. If you think I was spared, came out unscathed, that today I ride off into sunset, while you suffer the greatest blow, you are mistaken. Nobody wins. We have all been devastated, we have all been trying to find some meaning in all of this

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suffering. Your damage was concrete; stripped of titles, degrees, enrollment. My damage was internal, unseen, I carry it with me. You took away my worth, my privacy, my energy, my time, my safety, my intimacy, my confidence, my own voice, until today . . . You made me a victim. In newspapers my name was "unconscious intoxicated woman," ten syllables, and nothing more than that. For a while, I believed that that was all I was. I had to force myself to relearn my real name, my identity. To relearn that this is not all that I am. That I am not just a drunk victim at a frat party found behind a dumpster, while you are the All-American swimmer at a top university, innocent until proven guilty, with so much at stake.

While you worry about your shattered reputation, I refrigerated spoons every night so when I woke up, and my eyes were puffy from crying, I would hold the spoons to my eyes to lessen the swelling so that I could see. I can't sleep alone at night without having a light on, like a five-year-old, because I have nightmares of being touched. I used to pride myself on my independence, now I am afraid to go on walks in the evening, to attend social events with drinking among friends where I should

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be comfortable being. It is embarrassing how feeble I feel, how timidly I move through life, always guarded, ready to defend myself, ready to be angry.

(Pg 298-299) You do not get to shrug your shoulders and be confused anymore. You do not get to pretend that there were no red flags. You have been convicted of violating me, intentionally, forcibly, sexually, with malicious intent, and all you can admit to is consuming alcohol. Do not talk about the sad way your life was upturned because alcohol made you do bad things. Face the consequences of putting my pain into question, of making us wait so long for justice. Someone who cannot take full accountability for his actions does not deserve a mitigating sentence.

(Pg 300) *(to audience)* He has been found guilty of three serious felonies and it is time for him to accept the consequences of his actions. He will not be quietly excused. He is a lifetime sex registrant. That doesn't expire. Just like what he did to me doesn't expire, doesn't just go away after a set number of years. It stays with me, it's part of my identity, it has forever changed the way I

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carry myself, the way I live the rest of my life.

(Pg 301) To girls everywhere, I am with you. On nights when you feel alone, I am with you. When people doubt you or dismiss you, I am with you. I fought every day for you. So never stop fighting, I believe you. As the author Anne Lamott once wrote, "Lighthouses don't go running all over an island looking for boats to save; they just stand there shining." Although I can't save every boat, I hope that by speaking today, you absorbed a small amount of light, a small knowing that you can't be silenced, a small satisfaction that justice was served, a small assurance that we are getting somewhere, and a big, big knowing that you are important, unquestionably, you are untouchable, you are beautiful, you are to be valued, respected, undeniably, every minute of every day, you are powerful and nobody can take that away from you.

(Pg 280) Hold up your head when the tears come, when you are mocked, insulted, questioned, threatened, when they tell you you are nothing, when your body is reduced to openings. The journey will be longer than you imagined, trauma will find you again and again. Do not

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become the ones who hurt you. Stay tender with your power. Never fight to injure, fight to uplift. Fight because you know that in this life, you deserve safety, joy, and freedom. Fight because it is your life. Not anyone else's.

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SOURCE INFORMATION

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AWARD HISTORY

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